

GOVERNMENT HACK · TROOPTOTEACHER TECHNOLOGIES

Foundations of Constitutional Government

United States Government & Civics (GC) · Unit 1 · GC.01–GC.09

“How do the courts decide where your rights end and the government's power begins?”

Grades 9–12 · Suggested 16–18 days · Supplemental under TCA § 49-6-2202(a)(3)

Essential Question: How do the courts decide where your rights end and the government's power begins?

GC.23

The First Amendment in Court

GC.24

The Second Amendment in Court

GC.25

Rights of the Accused (4th–8th Amendments)

GC.26

The 14th Amendment — Equal Protection & Due Process

GC.27

Rights for the Underserved

The First Amendment in Court

Learning target: I can evaluate how the Supreme Court has interpreted the First Amendment freedoms.

PRIMARY SOURCE



PRIMARY SOURCE • DOCUMENT

Bill of Rights (First Amendment detail)

drop image: GC.23_first-amendment.jpg

The First Amendment: the 45 words the Supreme Court has interpreted case by case — Tinker, Engel, Texas v. Johnson.

“Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press.” — 1st U.S. Congress, U.S. Constitution, Amendment I (1791)

Bill of Rights (First Amendment detail) • 1st U.S. Congress (NARA) (1789) • Wikimedia Commons

HOOK

A silent armband, a burning flag, a banned book, a school prayer — the same 45 words protect or limit each one. Where does your freedom to express end?

KEY VOCABULARY

Clear and Present Danger /kleer and PREZ-ent DAYN-jer/
peligro claro y presente

The test from Schenck v. United States (1919) allowing limits on speech that creates a real, immediate danger — such as falsely shouting fire in a crowded theater.

CHECK FOR UNDERSTANDING • DOK 3

What did the Supreme Court decide in Tinker v. Des Moines (1969)?

- A Schools may ban any student speech they dislike
- B ✓** Students keep their free-speech rights at school, unless the speech substantially disrupts
- C The First Amendment does not apply to students
- D Only teachers, not students, have free-speech rights

Answer: B. DOK 3: The Court held that students do not 'shed their constitutional rights... at the schoolhouse gate,' protecting non-disruptive student expression like the silent armband protest.

The Second Amendment in Court

Learning target: I can explain the Second Amendment and evaluate how the Supreme Court has interpreted it.

PRIMARY SOURCE



PRIMARY SOURCE • DOCUMENT

Second Amendment
(document detail)

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amendment.jpg

The Second Amendment: one sentence at the center of the individual-right debate the Court settled in Heller (2008).

“A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.” — 1st U.S. Congress, U.S. Constitution, Amendment II (1791)

Second Amendment (document detail) • 1st U.S. Congress (NARA) (1789) • Wikimedia Commons

HOOK

One sentence, written in 1791, still splits the country: is the right to 'keep and bear Arms' yours as a person, or only as part of a militia? The Court finally answered in 2008

KEY VOCABULARY

Second Amendment /SEK-und uh-MEND-ment/

Segunda Enmienda

The amendment protecting 'the right of the people to keep and bear Arms,' whose meaning has been debated between an individual right and a militia-based right.

CHECK FOR UNDERSTANDING • DOK 2

What did District of Columbia v. Heller (2008) decide about the Second Amendment?

- A That only the military may own weapons
- B That the amendment applies only to the federal government forever
- C That states may ban all firearms
- D ✓ That the Second Amendment protects an individual right to keep and bear arms**

Answer: D. DOK 2: In Heller, the Court held that the Second Amendment 'conferred an individual right to keep and bear arms'; McDonald v. Chicago (2010) then applied that right to the states through incorporation.

Rights of the Accused (4th–8th Amendments)

Learning target: I can evaluate how the Supreme Court has protected the rights of the accused under the 4th through 8th Amendments.

PRIMARY SOURCE



PRIMARY SOURCE · DOCUMENT

Clarence Gideon's handwritten cert. petition

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Clarence Gideon's handwritten petition to the Supreme Court (1962) — one prisoner's letter that won the right to a lawyer.

“In all criminal prosecutions, the accused shall enjoy the right... to have the Assistance of Counsel for his defence.”
— 1st U.S. Congress, U.S. Constitution, Amendment VI (1791)

Clarence Gideon's handwritten cert. petition · Clarence Earl Gideon (NARA RG 267) (1962) · Wikimedia Commons

HOOK

'You have the right to remain silent.' You've heard it a hundred times on TV — but a real person had to fight to the Supreme Court to make it law. Which rights protect the accused?

KEY VOCABULARY

Exclusionary Rule /eks-KLOO-zhun-air-ee/
regla de exclusión

The rule from Mapp v. Ohio (1961) that evidence obtained by an illegal search cannot be used in court — enforcing the 4th Amendment.

CHECK FOR UNDERSTANDING · DOK 2

What right did Gideon v. Wainwright (1963) guarantee?

- A ✓** The state must provide a lawyer to a defendant who cannot afford one
- B** Police may search a home without a warrant
- C** A suspect must answer all police questions
- D** Trials may be held in secret

Answer: A. DOK 2: Gideon held that a fair trial requires counsel, so the state must provide a lawyer to defendants too poor to hire one — applying the 6th Amendment to the states.

The 14th Amendment — Equal Protection & Due Process

Learning target: I can evaluate how the Supreme Court has interpreted the 14th Amendment's equal protection and due process clauses.

PRIMARY SOURCE



PRIMARY SOURCE • DOCUMENT

14th Amendment (engrossed, page 1)

drop image: GC.26_fourteenth-
amendment.jpg

The 14th Amendment (1868): equal protection and due process — the clauses behind Plessy, Brown, and Obergefell.

“...nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.” — 39th U.S. Congress, U.S. Constitution, Amendment XIV, Section 1 (1868)

14th Amendment (engrossed, page 1) • 39th U.S. Congress (NARA) (1868)
• Wikimedia Commons

HOOK

The same 14th Amendment once allowed 'separate but equal' — and later ended it. How can the identical words mean opposite things fifty years apart?

KEY VOCABULARY

Equal Protection Clause /EE-kwul pro-TEK-shun/

cláusula de igual protección

The 14th Amendment guarantee that no state may 'deny to any person... the equal protection of the laws' — the basis of Brown v. Board.

CHECK FOR UNDERSTANDING • DOK 3

How did Brown v. Board of Education (1954) change the meaning of the Equal Protection Clause?

- A It upheld 'separate but equal' from Plessy
- B It ended the 14th Amendment
- C ✓** It ruled that 'separate educational facilities are inherently unequal,' overturning school segregation
- D It applied only to colleges, not public schools

Answer: C. DOK 3: Brown held that segregated schools violate the Equal Protection Clause because 'separate educational facilities are inherently unequal,' overturning the 'separate but equal' doctrine of Plessy v. Ferguson.

Rights for the Underserved

Learning target: I can identify legislation and legal precedents that expanded rights for underserved groups, including Title IX and the ADA.

PRIMARY SOURCE



PRIMARY SOURCE · PHOTO

Japanese-American incarceration, Lodi CA (WRA)

drop image: GC.27_wra-incarceration-1942.jpg

Dorothea Lange's 1942 photograph of Japanese-American incarceration — the Korematsu context and a warning about rights in wartime.

“No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance.” — U.S. Congress, Title IX, Education Amendments of 1972 (1972)

Japanese-American incarceration, Lodi CA (WRA) · Dorothea Lange (WRA) (1942) · Wikimedia Commons

HOOK

A law barely two sentences long transformed school sports for millions of girls. What other laws quietly widened the circle of who counts as equal?

KEY VOCABULARY

Title IX /TY-tul nine/

Título IX

A 1972 federal law barring sex discrimination in any education program that receives federal funds — landmark for equal opportunity, including in school athletics.

CHECK FOR UNDERSTANDING · DOK 2

What does Title IX (1972) prohibit?

- A ✓** Discrimination based on sex in federally funded education programs
- B** All private-school tuition
- C** The teaching of history
- D** Voting by people under 21

Answer: A. DOK 2: Title IX bars sex discrimination in any education program or activity that receives federal funds — a landmark for equal opportunity, including in school sports.

Whose Liberty? Perspectives on Rights

The Individual vs. the State

Nearly every case here pits one person's liberty — to speak, protest, worship, remain silent, or be treated equally — against a government's claim of order or authority (GC.23–GC.26).

Incorporation

Through the 14th Amendment, the Supreme Court gradually applied the Bill of Rights to the states, so protections once binding only the federal government now bind all governments (GC.26).

The Expanding Circle

Legislation and rulings extended rights to groups long left out — by race, sex, and disability — through Brown, Title IX, the ADA, and more (GC.26, GC.27).

Security vs. Liberty

Cases from Schenck to Korematsu show the Court sometimes narrowing rights in the name of security — a tension every generation revisits (GC.23, GC.27).

Our Signature Move



One of the most famous civil-liberties trials in U.S. history happened in Tennessee. In *State of Tennessee v. Scopes* (1925), a Dayton teacher named John Scopes was tried under the Butler Act for teaching evolution — the first U.S. law to ban it. The ACLU defended the case as a fight for academic freedom and free speech; Scopes was convicted, but the Tennessee Supreme Court later reversed the conviction on a technicality (GC.23).

Predict • Play • Spiral

Predict First — open the unit

Predict first: Should a student have the same free-speech rights at school as an adult on the street? Write your gut answer now — you'll test it against *Tinker v. Des Moines* and the 'schoolhouse gate.'

Warm-Up Play — You Be the Court

4-minute game (GC.23–GC.26). Read a one-line scenario — a silent armband protest, a school-led prayer, an illegal search, a suspect never told their rights — and call which amendment protects it and which landmark case decided it. Students feel how the Bill of Rights lives in real disputes.

Spiral — retrieve & connect

GC.23 → Unit 1 (GC.08, the Bill of Rights)

Every case here interprets an amendment you first met in Foundations — the Bill of Rights, now in the courtroom.

GC.26 → Unit 3 (GC.11, *Baker v. Carr*)

The 14th Amendment's Equal Protection Clause powered both *Baker v. Carr* and *Brown* — the same clause, different fights.

GC.25 → Unit 5 (GC.21, judicial review)

The Court can protect your rights against a law only because *Marbury* gave it judicial review — retrieve it from Unit 5.

Rights Debate

- Name the amendment and the case before you argue.
- Steelman the other side's liberty claim first.
- Disagree with the reasoning, not the classmate.
- One voice at a time; make room for the quiet voice.

Revisit the Essential Question

“How do the courts decide where your rights end and the government's power begins?”

Students now have the sources, vocabulary, and reasoning to answer it — in a CER paragraph or the unit DBQ.

GC.23 · GC.24 · GC.25 · GC.26 · GC.27